STATE OF MARYLAND	*	**IN THE**
	*	**CIRCUIT COURT**
v.	*	**FOR**
JOHN ANDREW SMITH	*	**BALTIMORE CITY**
1418 Elm Street	*	
Baltimore, Maryland 21218	*	**Case No. 24-CR-004512**
Defendant.	*	

* *

CRIMINAL INFORMATION

The Office of the State's Attorney for Baltimore City, by Assistant State's Attorney Marcus Whitfield, charges that the Defendant, John Andrew Smith (DOB 03/14/1963; SID 4418207), whose last known residence is 1418 Elm Street, Baltimore, Maryland 21218, committed the following offenses in Baltimore City, State of Maryland:

COUNT ONE -- Theft Scheme ($25,000 to under $100,000)

Between on or about January 8, 2024 and on or about April 26, 2024, the Defendant, John Andrew Smith, pursuant to one scheme and continuing course of conduct, did willfully and knowingly obtain unauthorized control over money of Acme Logistics LLC, having a value of at least $25,000 but less than $100,000, to wit: $63,450.00, with the intent to deprive the owner of that property, in violation of Md. Code Ann., Crim. Law § 7-104, against the peace, government, and dignity of the State.

COUNT TWO -- Assault in the Second Degree

On or about May 3, 2024, the Defendant, John Andrew Smith, did assault Darnell Price, in violation of Md. Code Ann., Crim. Law § 3-203, against the peace, government, and dignity of the State.

COUNT THREE -- Burglary in the Fourth Degree

On or about May 3, 2024, the Defendant, John Andrew Smith, did break and enter the storehouse of Acme Logistics LLC, located at 4900 Holabird Avenue, Baltimore, MD 21224, in violation of Md. Code Ann., Crim. Law § 6-205(b), against the peace, government,

and dignity of the State.

STATEMENT OF PROBABLE CAUSE

1. Acme Logistics LLC ("Acme") is a freight and warehousing company headquartered at 2300 Smith Avenue, Baltimore, MD 21209. Since 2002 the Defendant has worked at Acme's distribution warehouse on Holabird Avenue, most recently as Operations Manager. In that role Mr. Smith had authority to approve vendor invoices of up to $10,000 without a second signature.

2. Between January and April 2024, Mr. Smith approved fourteen invoices from a vendor called Patapsco Freight Services, each between $3,900 and $5,200, for "overflow trailer drayage." Acme has no record that any drayage was performed. All fourteen payments, totaling $63,450.00, were sent by ACH to a business checking account at Chesapeake Federal Bank ending in 5510.

3. Records produced by Chesapeake Federal Bank show that the account was opened on December 18, 2023 by John A. Smith, doing business as Patapsco Freight Services, using a Social Security number ending in 6789, and listing the Defendant's home at 1418 Elm Street as the business address. The Defendant's wife, Mary E. Smith, is listed as a joint signer. Teller Rosa Delgado of the Eastern Avenue branch processed eleven cash withdrawals from the account, and identified the Defendant from a photo array as the person who made them.

4. On April 29, 2024, Acme shift supervisor William Marsh reported the Patapsco invoices to Acme's compliance office. Mr. Marsh told investigators that the Defendant learned of the report the following day and asked him "what exactly Will thought he had seen." Acme suspended the Defendant's approval authority on May 1, 2024, but did not deactivate his building access badge.

5. At approximately 10:38 P.M. on May 3, 2024, the Defendant's badge (No. A-20417) was used to open the rear dock door and the second-floor operations office of the warehouse. Security officer Darnell Price, an employee of Ironclad Security Services

assigned to the site, heard a filing cabinet being forced and went upstairs. The intruder pushed Mr. Price down the office stairwell and fled through the dock door. Mr. Price sustained a fractured left wrist. Two binders of vendor files, including all Patapsco Freight paperwork, were missing.

6. Mr. Price described the intruder as a white male, heavyset, wearing a dark Orioles cap. A neighbor of the Defendant, May Chen, of 1420 Elm Street, told police that she saw "Mr. Smith" leave the Elm Street house in the Defendant's silver pickup truck shortly after 10:00 P.M. and return before midnight. Travel time from the residence to the warehouse is approximately nineteen minutes.

7. When interviewed on May 6, 2024, the Defendant denied entering the warehouse and stated that he spent the evening at an urgent-care clinic with his granddaughter, a minor identified here as E.S. The Defendant stated that his son, Stephen M. Smith, may have used the pickup truck that night. Based on the foregoing, there is probable cause to believe that the Defendant committed the offenses charged.

Respectfully submitted,

/s/ Marcus Whitfield
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